

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS
AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD.,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED
THIRD PARTY RESPONDENTS,

**SAMSUNG ELECTRONICS AMERICA, INC.'S OPPOSITION
TO COSCO SHIPPING LINES CO., LTD.'S MOTION TO COMPEL**

Samsung Electronics America, Inc. (“SEA”) respectfully submits this opposition to COSCO Shipping Lines Co., Ltd.’s (“COSCO”) Motion to Compel Discovery (“Motion”).

INTRODUCTION

Respondent has not been forthright with the Presiding Officer, yet again. COSCO’s insistence that SEA must provide shipment-by-shipment narratives and identify, by Bates number, every document for each interrogatory (Motion at pp. 7–8) would, without legal basis (as the demand is not supported by the FMC Rules), force SEA to marshal COSCO’s *own* records before COSCO has produced them. COSCO ships SEA goods. COSCO controls the shipment of cargo. COSCO issues invoices for the D&D charges, almost always with no reason provided for the charge it issued. Now, because SEA dared to file a reparations petition against COSCO, COSCO demands SEA explain, *in an interrogatory response*, why COSCO or its contractual partners were wrong to invoice SEA for D&D charges when COSCO didn’t even explain the basis for its actions in these invoices and has not produced all of its own documents? It makes no common sense.

Even worse, these *identical* interrogatory demands on materially similar interrogatories were viewed dimly by the Presiding Officer in *SEA v. OOCL* just hours before this Motion was filed (counsel for OOCL and COSCO are shared). The OOCL Order (*Samsung Electronics America, Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited v. Samsung Electronics Co., Ltd.*, FMC Dkt. No. 24-17 (A.L.J. February 20, 2026) (Dkt. 120, Served Order Following Second Status Conference, p. 2), that followed the hearing made his views plain. Wrongly, counsel for COSCO did not even address this OOCL Order in the Motion. Nor did COSCO acknowledge similar arguments made on these premature “contention interrogatories” in *SEA v. HMM* by its co-counsel firm in OOCL, where the Presiding Officer addressed discovery issues at a January 29, 2026, status conference and provided his guidance that interrogatories were

not actually needed for depositions and are meant to be addressed at the end of discovery.¹ The guidance by the Presiding Officers in *HMM* and *OOCL* rings true here and supports dismissal of COSCO's Motion for two reasons.

First, the Motion seeks to compel *supplemental* responses to contention interrogatories (*i.e.*, 12, 13, 14, 17, 19 & 20), which are disfavored at this stage of litigation and should instead be issued at the end of discovery. Discovery remains in its early stages, depositions have not begun, and COSCO admits it has not completed its full production of documents from principals in China.

Second, the legal precedent cited by COSCO in purported support of this discovery theory is inapplicable. The cases cited²—*Samsung Electronics America, Inc. v. SM Line Corp.*, FMC Dkt. No. 23-01, 2025 WL 2231637 (A.L.J. May 28, 2025), *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.*, FMC Dkt. No. 24-10, 2025 WL 1083815 (A.L.J. Mar. 24, 2025), *Samsung Electronics America, Inc. v. Zim Integrated Shipping Services Ltd.*, FMC Dkt. No. 22-30, 2025 WL 1255544 (A.L.J. April 22, 2025) and *Peloton v. Flexport*, FMC Dkt. No. 24-19 (A.L.J. June 30, 2025) (Dkt. 72 at pp. 16-17) were all well advanced, with discovery complete (or, in *Peloton*, expert discovery underway) before the rulings COSCO invokes. Those decisions applied fact-intensive reasonableness analyses on developed records. Here, discovery has just begun. In sum, the scant legal precedent upon which COSCO relies does not support its demand. These are not “contention interrogatories” – there is no narrowing of discovery gained by them. COSCO's ulterior purpose can only be speculated, but it is not based on sound legal principles.

¹ The issue of contention interrogatories was addressed at a discovery status conference with the Presiding Officer. *Samsung Electronics America, Inc. v. HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd.*, FMC Dkt. 24-23, 2026 WL 254021 (A.L.J. Jan. 22, 2026) (Dkt. 43 & 44, Order Setting Discovery Conference). See Declaration of Kristine Little (“Little Decl.”), dated Feb. 27, 2026, Exhibits A and B. Following the status conference, no motion to compel was filed.

² *SM Line*, *TZ*, and *Peloton* were also cited in the *OOCL* Motion to Compel. See *OOCL*, FMC Dkt. No. 24-17, 2026 WL 254010, (A.L.J. Jan. 20, 2026) (Dkt. 104, Respondent's Motion to Compel).

LEGAL STANDARD

On motion or on its own, the Presiding Officer may limit the frequency or extent of discovery if it is cumulative, duplicative, available from a more convenient source, or if the burden outweighs the likely benefit, considering proportionality and the needs of the proceeding. 46 C.F.R. § 502.141(e)(2)(ii). Further, FMC Rules of Practice and Procedure (“FMC Rules”) expressly permit a party to answer an interrogatory by producing business records where the answer may be determined by examining and compiling those records, provided the records are identified with sufficient detail and the requesting party is given a reasonable opportunity to examine them. 46 C.F.R. § 502.145(d)(1)-(2).

ARGUMENT

I. CONTENTION INTERROGATORY NOS. 12, 13, 14, 17, 19 & 20 ARE IMPROPER AT THIS STAGE

The interrogatories at issue are contention interrogatories and are premature at this early stage of the litigation.³ Courts generally disfavor contention interrogatories before substantial discovery has occurred.⁴ A party filing contention interrogatories early in the pretrial period, before

³ COSCO glosses over substantial authority noting that courts disfavor contention interrogatories “at the outset of discovery.” COSCO’s cited case law, however, does not deny that answers to contention interrogatories may be delayed or otherwise limited. *See e.g. Anaya v. CBS Broadcasting Inc.*, No. CIV 06-0476 JBKBM, 2007 WL 2219458 at *6 (D.N.M. May 16, 2007). COSCO otherwise argues that SEA’s case law, in particular *In re Convergent Techs. Sec. Litig.*, 108 F.R.D. 328 (N.D. Cal. 1985) is no longer persuasive authority. COSCO’s scant citations are swamped by substantial and recent authority that says otherwise. *See et al., Loeber by and through Lober v. United States*, No. 21-cv-03866-LB, 2023 WL 4703329 at *2 (N.D. Cal. July 24, 2023); *O’Connell v. Celonis, Inc.*, No. 22-cv-03430-WHO (LB), 2023 WL 5022273 at *3 (N.D. Cal. July 21, 2023); *Heredia v. Sunrise Senior Living LLC*, 2020 WL 12584277 at *5 (C.D. Cal. July 20, 2020); *Impact Engine, Inc. v. Google LLC*, No 19-cv-01301-CAB-BGS, 2020 WL 2745230 at *4 (S.D. Cal. May 26, 2020); *Everett v. USAir Group, Inc.*, 165 F.R.D. 1, 3 (D.D.C. 1995).

⁴ *Hall v. Johnson & Johnson*, No. 18-1833 (FLW), 2021 WL 2562384, at *2 (D.N.J. June 22, 2021) (“Cases typically find that contention interrogatories are premature where there has not been substantial discovery, and the Court has discretion to delay in the instant litigation because merit depositions and expert discovery are still to come.”); *In re eBay Seller Antitrust Litig.*, No. C 07-1882 JF (RS), 2008 WL 5212170, at *1 (N.D. Cal. Dec. 11, 2008) (“Courts using their Rule

substantial documentary or testimonial discovery has been completed, has the burden of justification.⁵ It must present “specific, plausible grounds for believing that securing early answers to its contention questions will materially advance the goals of the Federal Rules of Civil Procedure.” *Id.* (citing *In re Convergent Technologies Secs. Litig.*, 108 F.R.D. 328, 341 (N.D. Cal. 1985)). COSCO has not met its burden of justification here.

COSCO’s First Set of Interrogatories asks SEA to “identify every instance” in which SEA “contends” COSCO engaged in some action (*see* Interrogatory Nos. 14, 17, 19 & 20), or “identify all” facts with respect to a paragraph of the Amended Complaint. *See* Interrogatory Nos. 12, 13. Motion, Exhibit A at p. 2. In each case, COSCO’s requests track SEA’s pleading and demand granular event details, including dates, locations, participants, and narratives. *See* Motion, Exhibit C at p. 3 (quoting COSCO’s definition of “identify” with respect to an “event”). Courts have warned that this kind of early allegation-by-allegation contention discovery is a serious form of discovery abuse. *Convergent*, 108 F.R.D. at 339.

COSCO’s interrogatories were propounded even though this case is still in the early stages of discovery. Depositions have not yet been noticed, expert discovery has not yet commenced, and COSCO is on record that its document production will not be completed until April 16, 2026. *See* Joint Motion to Extend and Modify the Discovery Schedule, Dkt 101 at p. 2. Ordering SEA now to identify Bates numbers and craft shipment-by-shipment narratives would be inefficient and

33(a)(2) discretion generally disfavor contention interrogatories asked before discovery is undertaken.”) (citations omitted). Courts will therefore not require parties to “prematurely lock [themselves] into the legal theories and evidence that supports their affirmative [claims or defenses]” (*Hall*, 2021 WL 2562384, at *1), because parties “may have to set forth theories of its case that have not yet been developed.” (*Conopco, Inc. v. Warner-Lambert Co.*, No. Civ.A. 99-101 (KSH), 2000 WL 342872, at *4 (D.N.J. Jan. 26, 2000)); *Layne Heavy Civil, Inc. v. Healtheon, Inc.*, 2018 WL 11457410, at *3 (E.D. La. Sept. 4, 2018); *HealthEdge Software, Inc. v. Sharp Health Plan*, 2021 WL 1821358, at *4 (D. Mass. May 6, 2021).

⁵ *Fischer and Porter Co. v. Tolson*, 143 F.R.D. 93, 95-96 (E.D. Pa. 1992).

inevitably incomplete without COSCO's own operational records, internal communications, and related testimony. SEA must be provided with an opportunity to receive COSCO's full production before being required to compile information responsive to these interrogatories. Only then could SEA meaningfully undertake the compilation and analysis COSCO now demands. Accordingly, there is no basis to require SEA to compile such extensive information in response to these interrogatories at this stage of litigation.

COSCO seeks this information from SEA when it has access to the same information. SEA has advised COSCO that no cumulative business record listing the reasons for each container delay was prepared by SEA personnel during the relevant time period, and SEA has produced responsive documents pursuant to 46 C.F.R. § 502.145(d). COSCO is in the same position as SEA to review these materials to locate and identify documents potentially relevant to the claims and defenses in this case. SEA is not under any compulsion to perform this basic litigation task for COSCO. *Convergent*, 108 F.R.D. at 339 (a court "will be especially vigilant in its evaluation of proffered justifications when a complaint is not facially infirm and when defendants appear to have control over or adequate access to much of the evidence relevant to their alleged misconduct.")

Recent FMC proceedings support SEA's position. In *SEA v. OOCL*, ALJ Ambrow issued an order on February 20, 2026 (a mere six hours before this Motion was filed) that "[c]ontention interrogatories are generally permissible, but should not be served until near the end of discovery . . ." *See OOCL*, FMC Dkt. No. 24-17, 2026 WL 498190 (ALJ Feb. 13, 2026) (Dkt. 117, Second Order Setting Status Conference, at p. 2).⁶ Likewise, on January 29, 2026, ALJ Chintella in *SEA v. HMM* provided his guidance to the parties, stating that contention interrogatories are meant for

⁶ COSCO's co-lead counsel, Rebecca Fenneman, is also co-counsel of record for OOCL. Counsel wrongly failed to provide notice of adverse authority in the OOCL February 20 Order when the COSCO Motion was filed with the Presiding Officer later that evening.

the end of discovery. In providing that guidance, he found it implausible that the ocean carrier HMM would truly be using precious deposition time to ask deponents about the basis for each and every charge in the dispute.⁷ SEA respectfully requests the Presiding Officer take notice of the guidance in these similar cases, each addressing similarly drafted interrogatories seeking information nearly identical to that sought here.⁸ For the foregoing reasons, SEA respectfully requests that the Motion be denied with respect to Interrogatory Nos. 12, 13, 14, 17, 19 & 20.

II. COSCO'S LEGAL AUTHORITY DOES NOT SUPPORT ITS THEORY

COSCO's Motion relies on cases that were at different stages of their respective proceedings. *Critically*, none of COSCO's cited cases require a complainant to provide shipment-by-shipment narratives for containers within the respondent's custody and control before completion of the respondent's own document production.

COSCO cites *SM Line Corp.*, 2025 WL 2231637 at *46, *Zim*, 2025 WL 1255544 at *1 and *TZ SSE Buyer*, 2025 WL 1083815 at *20, for the proposition that SEA must provide specific container-by-container interrogatory responses specifying the cause of each disputed charge and delay. But those were merits decisions issued after the close of discovery on a closed record. This dispute concerns discovery timing and burden on an undeveloped record, where fact discovery remains ongoing and COSCO's own production is still underway. SEA has no obligation to

⁷ See Little Decl., Exhibit B at p. 21 ("they're essentially contention derogatory [sic], which in complex cases like I said, are often responses are often delayed towards the end of discovery or at the very end of this discovery or after Discovery's closed in some instances").

⁸ In *SEA v. OOCL*, OOCL sought a narrative of the cause of all delays relating to the retrieval and return of OOCL containers (Interrogatory 10) as well as a narrative of how OOCL caused or contributed to the delay which resulted in the charge from OOCL to SEA (Interrogatory 11). *OOCL*, 2026 WL 254010, at *2. In *SEA v. HMM*, HMM requested that SEA state the cause of alleged delays for each Subject Shipment (Interrogatory 17) and state how HMM caused or contributed to the underlying transportation delays (Interrogatory 18). *HMM*, FMC Dkt. 24-23, 2026 WL 254005 (A.L.J January 16, 2026) (Dkt. 43 HMM Letter to ALJ Requesting Conference Call Regarding Discovery Dispute, at p. 2).

establish its case-in-chief solely based on its own evidence, at this early stage. Indeed, *SM Line* underscores this point, where critical “charge-by-charge” evidence establishing SM Line’s liability and damages was produced by the *respondent*, SM Line, during discovery.

Likewise, *Peloton*, FMC Dkt. No. 24-19 (Dkt. 72 at pp. 16-17) is readily distinguishable.⁹ *Peloton* does not support the proposition that, at the outset of discovery and before document discovery is complete, SEA must generate container-by-container causation narratives without the benefit of COSCO’s complete production. The *Peloton* case cited by COSCO was rendered during expert discovery, only after several discovery-related orders had been issued, depositions had concluded, and all discovery deadlines had closed.¹⁰ The supplemental responses found to be sufficient and complete in that case referred the respondent to Peloton’s expert reports, which contained a “detailed analysis” of materials produced by respondent. *Id.* Those responses were possible only because they were served after document and expert discovery had been completed. Here, COSCO’s reliance on *Peloton* ignores this materially different procedural posture.¹¹

III. SEA’S INTERROGATORY RESPONSES ARE SUFFICIENT

A. SEA’s Use of Business Records Meets all Cognizable Discovery Standards

COSCO seeks to compel SEA to provide a narrative on each container complete with all facts, information in support of SEA’s claims and to further identify, by Bates number, every

⁹ In *Peloton*, Dkt. No. 47, Peloton had attached a Bates log to its opposition to Flexport’s motion to compel. During the discovery conference, *undersigned counsel* advised the Presiding Officer of that supplementation. The Presiding Officer required only that Peloton formally serve the same material it had already agreed to provide. The ruling did not address or endorse the propriety of responding to contention interrogatories by Bates reference, nor did the Bates log include a container-by-container supplement of the type COSCO seeks here.

¹⁰ See *Peloton*, FMC Dkt. No. 24-19, 2025 WL 1454516 (ALJ May 15, 2025) (Dkt. No. 62, Order on Pending Motions at p. 7) (resetting all-discovery deadlines for June 2, 2025).

¹¹ By contrast, COSCO’s document discovery remains ongoing, written discovery is underway, and expert discovery and depositions have not yet begun.

document responsive to each interrogatory. (Motion at p. 8). FMC Rules do not require a responding party to synthesize information already contained in previously produced business records. Rather, FMC Rules permit a party to answer by producing business records where the answer may be determined by examining and compiling those records, provided they are identified with sufficient detail and the requesting party is given a reasonable opportunity to examine them. 46 C.F.R. § 502.145(d)(1)–(2). SEA has met that standard, and it is logical this is the only standard because it is impossible for an SEA declarant to submit the verification COSCO demands. A declarant *cannot* verify each charge basis when this requires the work of lawyers and experts to marshal evidence and present it to the Presiding Officer for ultimate adjudication of damages.

Moreover, the theory that COSCO is somehow disadvantaged by the prospect of having to “rummage” through SEA’s production in defense of the claims is preposterous. Motion at p. 7. SEA produced *responsive documents* specifically requested by COSCO in the same format and accessibility available to SEA. Document review and analysis is the obligation of all litigating parties, and COSCO’s request for additional Bates numbers exceeds the bounds of permissible discovery—especially at this stage.¹²

SEA has produced all responsive documents in its possession to date. COSCO, on the other hand, has not, as detailed more fully in SEA’s Motion to Compel, Dkt. 95 at pp. 3-9. COSCO now seeks additional information contained in records it has failed to produce. COSCO undoubtedly has detailed documentation on the movement and handling of the containers it transports, including the SEA containers at issue and the delays in the inland delivery and return of those containers,

¹² It is for the reasons cited, *supra* at Section II, that neither *Peloton* nor *TZ* holds that SEA is required to identify specific documents (presumably by Bates number) when responding to interrogatories by electing to produce documents.

but it has so far failed to produce all of these documents to SEA. COSCO cannot avoid its own responsibilities and shift the burden to SEA to avoid its own document collection and analysis.

Moreover, the issues raised in Interrogatories Nos. 6, 9, 25, and RFP No. 11 provide further, independent grounds for denial. Each of these discovery requests imposes undue burdens, seeks information outside the proper scope of discovery, or inappropriately demands that SEA undertake work that is not required by the applicable rules. These distinct and substantive flaws in COSCO's requests reinforce that denial of the Motion is sound, separate from the reasons already articulated:

B. Interrogatory No. 6: Consistent with the theme of this Motion, Interrogatory No. 6 asks SEA to do COSCO's work for it. COSCO seeks to compel SEA to identify third parties "related to or affiliated with SEA" who may have knowledge of the allegations in the Amended Complaint and asks SEA to describe the substance of each such person's knowledge. COSCO's Motion, Exh. A, p. 2. In essence, this grossly overbroad and burdensome interrogatory improperly demands that SEA *speculate* about information outside its possession or control regarding *what third parties may or may not know* to summarize SEA's document production. SEA does not have insight as to the specific knowledge held by these third parties beyond what is in the documents.

C. Interrogatory No. 9: SEA has sufficiently responded to Interrogatory No. 9 and produced all documents responsive to this request, including those reflecting payment processes and review and approval information. SEA has no obligation to summarize its document production to create a detailed narrative for COSCO concerning the process for the payment of these charges at issue above and beyond what has been provided. COSCO's request goes beyond the scope of discovery and COSCO cites no authority requiring otherwise.

D. Interrogatory No. 25: Likewise, SEA sufficiently responded to Interrogatory No. 25 and produced all documents responsive to this request. SEA has no obligation to summarize its

document production to create a detailed narrative for COSCO concerning mitigation or limitation of damages, and COSCO cites no authority to the contrary.

E. RFP No. 11: SEA objects to the production of audited financial statements because the request is irrelevant, disproportionate, and premature. SEA's damages will be addressed in the expert phase which has not yet begun, and COSCO identifies no basis for demanding company-wide audited financials at this stage. The request is also unduly burdensome and intrusive, as audited financial statements contain highly confidential and proprietary information bearing no relation to shipment-level charges at issue. Any marginal relevance is substantially outweighed by burden and confidentiality concerns, particularly at this early discovery stage.

CONCLUSION

SEA respectfully requests that the Presiding Officer deny COSCO's Motion in its entirety.

Dated: February 27, 2026

Respectfully Submitted,

HOLLAND & KNIGHT LLP

By: /s/ Kristine Little
Christopher R. Nolan
Matthew R. DiBlasi
Allison N. Skopec
787 7th Street
New York, NY 10019
Telephone: (212) 513-3200
chris.nolan@hklaw.com
matthew.dibiasi@hklaw.com
allison.skopec@hklaw.com

Gerald A. Morrissey III
Kristine O. Little
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
Telephone: (202) 469-5497
gerald.morrissey@hklaw.com
kristine.little@hklaw.com
*Counsel to Samsung Electronics
America, Inc.*

CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

ATTORNEYS FOR THE RESPONDENT:

Jeffrey/Fenneman Law + Strategy, PLLC
Counsel for Respondent and Third-Party Complainant
Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Kaya Massey
KMassey@JeffreyFenneman.com
Nicholas Webb
NWebb@JeffreyFenneman.com

Nixon Peabody LLP
Counsel for Respondent and Third-Party Complainant
Brian J. Whittaker
bwhittaker@nixonpeabody.com
Gordon L. Lang
glang@nixonpeabody.com
Martha A. Medina
mmedina@nixonpeabody.com

ATTORNEYS FOR THE THIRD PARTY RESPONDENTS:

HOHENSTEIN & PARKINSON, LLP
Counsel for Third-Party Respondents
James H. Hohenstein, Esq.
Jim.hohenstein@hplawnyc.com
Sheryl K. Parkinson, Esq.
Sheryl.parkinson@hplawnyc.com

Dated: February 27, 2026

/s/ Allison N. Skopec

Allison N. Skopec